

The Impact of Canadian Law and Policy on Best Before Dates and Food Waste

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Introduction

Food waste is a complex and pressing issue with significant environmental, economic, and social implications. Despite being one of the world's wealthiest nations, many Canadians face food insecurity while edible food is wasted. Research by Second Harvest estimates 3.2 million tonnes of surplus edible food is produced by Canada's food industry annually, and 96% of this surplus edible food is wasted instead of being rescued or redistributed.¹ Additionally, food loss and waste accounts for almost 60% of the food industry's environmental footprint, which causes around 56.5 million tonnes of CO₂ equivalent emissions annually in Canada, and much of this food waste is avoidable.² Best before dates on food labels are a contributor to food waste. When food is nearing or past its best before date, it's often discarded because we believe it is not edible.³ Considering Canada's food waste statistics, best before dates on food labels need to be more effectively regulated.

Consumer Food Waste

Consumers significantly contribute to food waste. A report by Dalhousie University's Agri-Food Analytics Lab suggests households contribute to a majority of food waste in Canada. On average, Canadian households generate 2.3 kgs of organic food waste, and modelling evaluations show households generate between 20-24 million kgs of organic waste each month.⁴ Household food waste has a significant economic cost, as annual avoidable food loss and waste

¹ Martin Gooch et al, *Wasted Opportunity: The Technical Report*, (Ontario: Second Harvest and Value Chain Management, 2022) at 7.

² Lori Nikkel et al, *The Avoidable Crisis of Food Waste: The Roadmap*, (Ontario: Second Harvest and Value Chain Management International, 2019) at 3 [Nikkel, *The Avoidable Crisis*].

³ *Ibid* at 3.

⁴ Sylvain Charlebois, Erica Finch & Janet Music, *Household organic Food Waste – COVID-19*, (Halifax: Agri-Food Analytics Lab, 2020) at 1 [Charlebois, *Household Organic Food Waste*].

in Canada is around \$1766 per household.⁵ Consumer food waste occurs within the stages of managing food within households; customers often shop for two for one deals at grocery stores but the second unneeded item spoils before it can be eaten, products at home pass their best before date and are thrown out, and when dining out, consumers expect abundant portions but do not finish their meals.⁶ The Canadian Centre for Food Integrity surveyed consumers and reported households contribute to food waste by throwing out leftovers, discarding food that reached its best before date, and purchasing excess food which is then thrown out.⁷

Retail and Manufacturer Food Waste

The major food industry stakeholders, including retailers and restaurants, significantly contribute to food waste. Retailers fully stock shelves because consumers will not buy foods when store shelves are only part filled or nearly empty, which encourages overproduction of food.⁸ Retailer produce aesthetic standards contributes to food waste, as consumers will sift through produce bins searching for perfect items, resulting in wasted “imperfect” produce.⁹ The key stakeholders in Canada’s food industry believe its more cost efficient to throw away food instead of partnering with rescues or charities to donate it, and discarding food is the default option for managing surplus edible food.¹⁰ Food retailers feel that donating food is not financially beneficial to their operations; they assume donating food is more costly than disposing surplus food in landfills and account for the cost of surplus edible food in their budgets.¹¹ Low landfill disposal fees make sending surplus edible food to landfills the default

⁵ Charlebois, *Household Organic Food Waste*, *supra* note 4 at 1.

⁶ Nikkel, *The Avoidable Crisis*, *supra* note 2 at 3.

⁷ *Ibid* at 19.

⁸ *Ibid* at 14.

⁹ *Ibid*.

¹⁰ Gooch, *supra* note 1 at 9.

¹¹ *Ibid* at 19.

method to manage surplus food, especially in areas with low population density and no existing food donation infrastructure.¹² The administrative costs to employ staff to sort and process surplus food for donation is another factor contributing to retailer food waste.¹³ The food industry's willingness to donate surplus edible food is limited by the false perception of legal risk and complexity to donate food, and ineffective communication and coordination with food rescue organizations.¹⁴ The food industry may have concerns of claims under contract law, in which food buyers can make a claim against food sellers if the food is inedible, under tort law, in which people can make a claim against another who has caused them damage,¹⁵ and further reputational concerns, even if claims are not brought against them.

History of Best Before Dates

The history of best before dates provides insight on their purpose and impact on consumer perceptions. In the 1970s, significant ingredient labelling amendments were made to Part B, Division 1 of Canada's *Food and Drug Regulations*, including a new requirement for food labels to have best before dates.¹⁶ *The Dating Game* discusses America's best before date history, which is similar to Canada's history. As America urbanized between the 1950-70s, consumers began purchasing most of their food instead of growing it themselves, but little information on food's freshness and shelf life was available.¹⁷ By the 1970s, consumer concern about food's freshness led the food industry, government, and the public sector to implement

¹² Nikkel, *The Avoidable Crisis*, *supra* note 2 at 21.

¹³ *Ibid* at 15.

¹⁴ Gooch, *supra* note 1 at 30.

¹⁵ National Zero Waste Council, *Food Donation and Civil Liability in Canada*, (Vancouver: National Zero Waste Council, 2018) at 5.

¹⁶ "The Dating Game", *Food in Canada* (1 October 2019), online: <<https://www.foodincanada.com/features/the-dating-game/>>.

¹⁷ Emily Broad Leib et al, *The Dating Game: How Confusing Food Date Labels Lead to Food Waste in America*, (New York: Natural Resources Defense Council and Harvard Food Law and Policy Clinic, 2013) at 6.

open dating.¹⁸ Open dating is a date label that includes a month, day, and year in a format that is clear to consumers.¹⁹ Open dating is different from the previous industry practice of closed dating, in which manufacturers and retailers used symbols or numbered codes that consumers did not understand to manage their inventory.²⁰

Food industry's introduction of best before dates was influenced by consumer demands for transparency on food's quality and freshness. Grocery stores were initially opposed to regulating food date labels because it would increase business losses due to older but edible food being wasted. However, grocery stores voluntarily began using the open date system in response to consumer demand and advertised this practice as a promotional strategy.²¹ Consumers demanded an open dating system, and argued if retailers are entitled to information about a product's freshness, then so are they.²² Consumers also had more favourable attitudes towards products with open dates.²³ The food industry opposed the American government's attempt to regulate dates on food labels because they already voluntarily used date labels, and federal requirements would impose higher costs.²⁴ Policymakers and food lawyers were discouraged from developing a uniform food date labelling system because it was difficult to harmonize different stakeholder needs and concerns.²⁵ America does not have uniform best before date regulation to date.

¹⁸ Leib, *supra* note 17 at 6.

¹⁹ *Ibid.*

²⁰ *Ibid.*

²¹ *Ibid* at 7.

²² Harvey L Hensel, "Look What Consumerism Has Done Now" (1974) 29:5 Food Drug Cosmetic L 220 at 225.

²³ *Ibid* at 226.

²⁴ Leib, *supra* note 17 at 7.

²⁵ *Ibid.*

Key Terms: Expiry Dates and Best Before Dates

i. Expiry Dates

Canada's expiry dates are governed by the Canadian Food Inspection Agency's (CFIA) *Food and Drug Regulations*. Expiration dates are only required on foods with strict compositional and nutritional specifications that may not be met after the date passed.²⁶ Their purpose is to indicate that a food may not have the same nutrient content that is declared on the label once the expiry date has passed.²⁷ The *Food and Drug Regulations* require an expiration date to be used only on the five following products: formulated liquid diets, foods for use in a very low-energy diet as sold by pharmacists, meal replacements, nutritional supplements, and human milk substitutes.²⁸ Food products past its expiry date should not be bought, sold, or eaten, and should be discarded.²⁹

ii. Best Before Dates

According to the *Food and Drug Regulations* section B.01.007(1), best before dates are required for foods with a shelf life of 90 days or less, except for fresh fruit, vegetables and certain other products. For foods with an anticipated shelf life greater than 90 days, a best before date is not required because the food is considered to be shelf stable.³⁰ Manufacturers and retailers may voluntarily provide customers with a best before date on the labels of food with a shelf life greater than 90 days.³¹ Best before dates can appear anywhere on food packaging and are identified with the words "best before" and in French "meilleur avant", grouped together

²⁶ Government of Canada, "Understanding the date labels on your food" (23 August 2023), online: <<https://inspection.canada.ca/food-labels/labelling/consumers/understanding-the-date-labels-on-your-food/eng/1332357469487/1332357545633>> [Government of Canada, "Understanding the date labels"].

²⁷ *Ibid.*

²⁸ *Ibid.*

²⁹ *Ibid.*

³⁰ *Ibid.*

³¹ *Ibid.*

with the date; the year is optional.³² Manufacturers and retailers are responsible for determining best before dates of products with a durable life of 90 days or less, and the specific durable life information for the products they sell, since the regulation does not provide specific product's durable life.³³

The *Food and Drug Regulations* best before date requirements are an important factor in Canada's food waste problem. Best before dates indicate a food that is properly stored and unopened may lose some of its freshness, taste, nutritional value, and any other qualities a manufacturer claim about the food once the date has past.³⁴ These regulations determine how best before dates are declared, but they do not guide how they are calculated – manufacturers set the best before dates themselves.³⁵ Importantly, there are specific guidelines for certain foods and bacteria, such as listeria in ready to eat food.³⁶ Overall, best before dates on shelf stable products with a durable life over 90 days are not indicators of food safety. Second Harvest explains that best before dates provide information about the food's quality, indicating the food was in its best form before the date, and after the date, the quality slowly declines.³⁷ Additionally, checks can serve as indicators to whether food should be eaten instead of relying on best before dates, including whether the food was stored at the correct temperature, the packaging's look, feel and smell, and whether the packaging provides safe food storage.³⁸

³² *Food and Drug Regulations*, CRC c 870, s B.01.007(4).

³³ Government of Canada, "Understanding the date labels", *supra* note 26.

³⁴ *Ibid.*

³⁵ Rod MacRae et al, "Making Better Use of What We Have: Strategies to Minimize Food Waste and Resource Inefficiency in Canada" (2016) 3:2 *Can Food Studies* 145 at 170.

³⁶ *Ibid* at 170.

³⁷ Sam Milbrath, "Best Before Dates: Everything You Need to Know" (19 February 2022), online (blog): <<https://blog.secondharvest.ca/2022/02/19/everything-you-need-to-know-about-best-before-dates/>>.

³⁸ *Ibid.*

Consumers and Best Before Dates

Understanding consumer's common difficulties interpreting best before dates can inform and guide legal and policy revisions that should promote responsible consumption and reduce food waste. Consumer understanding of before dates contributes to avoidable food waste. Consumers typically confuse best before dates with expiry dates, and even though best before dates are unrelated to food safety, consumers discard food past this date.³⁹ Food manufacturers set their own standards when selecting a food's best before date using testing methods such as shelf-life studies, which are the most effective method for food businesses to determine a food product's best before date. Shelf-life studies help establish how long a food can retain its palatability and quality, preserve its microbial, chemical, and physical integrity, remain wholesome, and meet nutritional declarations based on normal handling and storage conditions.⁴⁰ The *CFLA* has a shelf-life studies guide for food businesses to comply with *Safe Food for Canadians Regulations* but, food businesses can follow any guidance to meet the regulations.⁴¹ The *CFLA* does not establish best before dates for specific foods. Food businesses determine best before dates based on the shelf-life study, and typically set the date earlier than when testing indicated the product is no longer safe; it's up to food businesses to decide how much earlier the best before date is set compared to the date a food is no longer safe.⁴²

i. Consumer's Knowledge on Food Date Labels

Consumer knowledge of best before dates provides insight into purchasing decisions and consumption behaviours. Consumers often misuse best before dates to evaluate food safety even

³⁹ Milbrath, *supra* note 17.

⁴⁰ Government of Canada, "Shelf life studies" (13 June 2018), online: <<https://inspection.canada.ca/preventive-controls/shelf-life-studies/eng/1518010592756/1528203595232>>.

⁴¹ *Ibid.*

⁴² Londa Nwadike, "How do food manufacturers pick those dates on their product packaging – and what do they mean?", *The Conversation* (26 June 2016), online: <<https://theconversation.com/how-do-food-manufacturers-pick-those-dates-on-their-product-packaging-and-what-do-they-mean-60591>>.

though they do not convey information about the microbial component of food safety.⁴³

Consumers who are knowledgeable of best before dates are less likely to waste food. In a survey examining consumer's use and knowledge of food date labels, whether a respondent knew the meaning and purpose behind best before dates was a major indicator of their food waste and willingness to consume food past its best before date. Respondents who knew the correct definition of the best before date label were less likely to discard food that has been open past the date recommended on the label.⁴⁴ Further, those who understood the correct definition of the best before date were more likely to know that expiry dates are the only date labels that require consumers to discard a product.⁴⁵ However, much of Canada's population is not knowledgeable of best before dates. According to Lori Nikkel from Second Harvest, Canadians largely misunderstand best before dates on food labels. Best before dates are a significant driver of food waste in Canada because consumers think they mean a food is bad to eat once past the best before date.⁴⁶ American consumers also misunderstand best before dates. In the survey examining consumer's food date label use and knowledge, participants were asked about the meanings of three commonly used food date labels in the U.S., sell by, use by, and best if used before, and only 37.2% of respondents knew the meaning of all three food date labels.⁴⁷ Overall, many consumers are not knowledgeable about best before dates. Even in European countries with more knowledgeable consumers than Canada and the U.S., consumer knowledge does not translate into behaviours that reduce food waste.

⁴³ Melissa Kavanaugh & Jennifer J Quinlan, "Consumer Knowledge and Behaviours Regarding Food Date Labels and Food Waste" (2020) 115:107285 *Food Control* 1 at 1.

⁴⁴ *Ibid* at 3.

⁴⁵ *Ibid*.

⁴⁶ Lori Nikkel, "Nikkel: 'Best before' dates on food are long past their prime in Canada", *Ottawa Citizen* (15 August 2022), online: <<https://ottawacitizen.com/opinion/nikkel-best-before-dates-are-long-past-their-prime-in-canada>>.

⁴⁷ Kavanaugh, *supra* note 43 at 3.

ii. Consumer Behaviours and Food Date Labels

Checking best before dates is common when deciding to purchase or eat food. In a study examining food date label use and knowledge, around 81.6% of respondents indicated they either often or always look at food date labels.⁴⁸ Additionally, 71.6% of participants in this study use food date labels to assess a food product's edibility.⁴⁹ Further, the UK's Waste and Resources Action Programme (WRAP) study on avoidable food waste found foods past their best before date are one of the most frequently reported reasons for wasting food.⁵⁰ Overall, a majority of consumers refer to best before dates when purchasing or deciding to eat foods.

(a) Types of Food

While shopping for food, consumers use best before dates to inform their purchasing decisions. Consumers are less likely to purchase a food product close to its best before date. A questionnaire on Danish consumers' willingness to buy dairy products close to their best before date found risk perception and food disgust sensitivity are the main drivers of purchasing decisions.⁵¹ Food disgust sensitivity is a consumer's susceptibility to becoming disgusted by certain food cues, which was discussed in this questionnaire in relation to best before dates.⁵² Danish consumers avoid purchasing dairy products near their best before date due to its unappetizing perceptions, especially those consumers with high risk perception and food disgust sensitivity, who view food nearing its best before date as a sign of food decay and are more

⁴⁸ *Kavanaugh, supra note 43* at 2.

⁴⁹ *Ibid* at 3.

⁵⁰ Kate Parizeau, Mike Von Massow & Ralph Martin, "Household-level Dynamics of Food Waste Production and Related Beliefs, Attitudes, and Behaviours in Guelph, Ontario" (2015) 35 *Waste Management* 207 at 214.

⁵¹ Carina V Melgaard et al, "Danish consumers' knowledge about and willingness to buy dairy products close to the best-before date" (2024) *Food Frontiers* 1 at 12.

⁵² *Ibid*.

likely to discard these items.⁵³ Overall, consumers are less likely to purchase food nearing its best before date because they consider these foods unappetizing.

Distinguishing between perishable or non-perishable foods effects consumers' willingness to consume food past its best before date. A survey of U.S. consumers found whether consumers discarded food varied depends on food type.⁵⁴ Respondents were the most likely to discard perishable foods near their best before date, with 69% of respondents discarding raw chicken always or most of the time, followed by deli meats and soft cheese.⁵⁵ Non-perishable foods near their best before date were less likely to be discarded, as foods like unopened canned goods and breakfast cereal pose the least concern to consumers based on their date labels.⁵⁶ Importantly, the respondents viewing best before date labels as safety messages discard food near its best before date more often than those who saw best before dates as quality indicators.⁵⁷ Next, a questionnaire of Belgian consumers found they interpret best before dates flexibly based on the food type; consumers are less likely to eat refrigerated food past its best before date compared to foods stored at room temperature.⁵⁸ These studies establish consumers treat best before dates as a signal to discard foods that they view as less perishable or hazardous.⁵⁹

(b) Supermarket Marketing and Promotions

Consumer shopping habits demonstrate how best before dates and overconsumption drive food waste. A Toronto-based study on urban household food waste, where almost all households purchase food at supermarkets, consumers frequently discard food past its best before date due to

⁵³ Melgaard, *supra* note 51 at 8-10.

⁵⁴ Roni A Neff et al, "Misunderstood Food Date Labels and Reported Food Discards: A Survey of U.S. Consumer Attitudes and Behaviours" (2019) 86 Waste Management 123 at 126.

⁵⁵ *Ibid.*

⁵⁶ *Ibid.*

⁵⁷ *Ibid.*

⁵⁸ S Van Boxstael et al, "Understanding and Attitude Regarding the Shelf Life Labels and Dates on Pre-Packed Food Products by Belgian Consumers" (2014) 37 Food Control 85 at 89.

⁵⁹ Neff, *supra* note 54 at 127.

over purchasing. Shopping in large food retail environments directly increases household food waste because supermarket advertisements and promotions encourage consumers to buy more food than they initially planned.⁶⁰ Around 71% of consumers in this study purchased an unplanned item in a supermarket because it was advertised or on promotion.⁶¹ Over purchasing food leads to food waste, as items reach their best before dates before consumption.

Public Health, Food Safety, and Best Before Dates

Public health information about food safety and best before dates increases food waste in Canada. Health Canada uses the phrase “when in doubt, throw it out” as guidance for food safety and households to manage leftover food,⁶² encouraging households to take a precautionous approach to handling surplus food.⁶³ Further, food safety decision making is influenced by best before date labels. Consumers who understand best before dates are less likely to discard food past the date and more likely to know products past their expiry dates should be discarded.⁶⁴ Since consumers have a limited understanding of food date labels, they tend to discard edible food due to food safety and personal health concerns.⁶⁵ Overall, public health messaging on food safety contributes to avoidable food waste.

⁶⁰ Belinda Li, Virginia Maclaren & Tammara Soma, “Urban Household Food Waste: Drivers and Practices in Toronto, Canada” (2021) 123:5 *British Food Journal* 1793 at 1794.

⁶¹ *Ibid* at 1801.

⁶² Government of Canada, “Food Safety Tips for Leftovers” (23 November 2020), online: <<https://www.canada.ca/en/health-canada/services/general-food-safety-tips/food-safety-tips-leftovers.html>>.

⁶³ Government of Canada, “Food Safety and You” (29 June 2021), online: <<https://www.canada.ca/en/health-canada/services/general-food-safety-tips/food-safety-you.html>>.

⁶⁴ Kavanaugh, *supra* note 43 at 3.

⁶⁵ Debasmita Patra, Shuyi Feng & Jeff W Howard, “Confusion of food-date label with Food Safety – Implications for Food Waste” (2022) 48:100917 *Current Opinion in Food Science* 1 at 1.

Retailers, Best Before Dates, and Food Waste

Food retailer's policies for managing items nearing or past its best before date contributes to food waste. Stock rotation, overstocking, and consumer expectations contributes to grocery store food waste. Grocery store businesses have a routine practice where employees examine products and reject them based on physical characteristics; the criteria to assess product freshness is based on an exercise in judgement.⁶⁶ Retailer focus on selling fresh food to manage consumer's expectations.⁶⁷ For instance, ordering the right amount of food is key to Loblaw's grocery business operations because customers expect products to be in stock where and when they shop.⁶⁸ Additionally, food retailers use best before date labels to manage their stock by removing items that reach its best before date before it has been sold from the shelves.⁶⁹ Failure to effectively rotate products and follow the "first in, first out" practice causes unsaleable food.⁷⁰ Further, frequent stock rotation increases food waste because consumers prefer newly stocked products with the longest best before date.⁷¹ Consumers expectations for variety increase the likelihood foods will reach their best before date before being sold, and retailers discard excess unsold food.⁷² Overall, retailer inventory management policies contribute to food waste when stock is ineffectively managed.

⁶⁶ René Audet & Éliane Brisebois, "The Social Production of Food Waste at the Retail-Consumption Interface" (2019) 11:14 Sustainability 1 at 12.

⁶⁷ *Ibid* at 13.

⁶⁸ Loblaw Companies Limited, *Environmental, Social and Governance Report 2022*, (Ontario: Loblaw Companies Limited, 2022) at 29.

⁶⁹ Rosetta Newsome et al, "Applications and Perceptions of Date Labelling of Food" (2014) 13:4 Comprehensive Rev in Food Science & Food Safety 745 at 759.

⁷⁰ *Ibid* at 761.

⁷¹ York University, "Supply Chain Waste" (last visited 1 April 2024), online: <<https://foodpolicyforcanada.info.yorku.ca/goals/goal-5/food-waste/supply-chain-waste/>>.

⁷² *Ibid*.

Law and Policy on Best Before Dates and Food Waste

Canada can review best before date regulations to mitigate and reduce their contribution to food waste. While 58% of all food produced is lost or wasted in Canada, 32% of this lost and wasted food could be avoided and rescued.⁷³ Amendments to regulations and food policy can reduce food waste caused by discarding edible food that's past its best before date.

i. Canadian Food Inspection Agency (CFIA)

The Canadian Food Inspection Agency (CFIA) regulates expiry and best before dates through the *Food and Drugs Regulations*. The *Food and Drugs Act* requires all food sold in Canada be safe for human consumption.⁷⁴ However, best before dates are not an indicator of food safety, therefore products past their best before date can legally be sold.⁷⁵ Furthermore, the CFIA is available for consumers to report concerns about food, and an inspector conducts a food safety investigation based on complaints.⁷⁶ Consumers can report the following to the CFIA: seeing a food product for sale past its expiration date and suspecting a food product has false or misleading information on the date label (for instance, a food manufacturer or retailer changes the best before date to result in false or misleading information on the label or unsafe food).⁷⁷ Consumers cannot make reports about a food product on sale past its best before date because it is legal to buy and eat foods past their best before date.⁷⁸ Since the CFIA does not investigate or take complaints on food past its best before date, this supports food retailers that may sell it at discounted rates or donate it.

⁷³ Nikkel, *The Avoidable Crisis*, *supra* note 2 at 5.

⁷⁴ *Food and Drugs Act*, RSC 1985 c F-27, s 4.

⁷⁵ Government of Canada, "Date markings and storage instructions on food labels" (22 June 2023), online: <<https://inspection.canada.ca/food-labels/labelling/industry/date-markings-and-storage-instructions/eng/1627497005658/1627497193134>>

⁷⁶ Government of Canada, "Understanding the date labels", *supra* note 26.

⁷⁷ *Ibid.*

⁷⁸ *Ibid.*

ii. Food Product Liability

Food products liability in Canada extends to a wide range of issues to protect consumers. Risk may arise from any foods that could cause personal injury, and food manufacturers and retailers can be held liable in tort law for personal injury caused by negligence.⁷⁹ Food can cause injury to humans due to contamination by physical sources (such as glass or metal in food), chemical sources, or biological sources (such as food poisoning or failure to indicate an ingredient that a person is allergic to).⁸⁰ The standard of care required of food processors and manufacturers by Canadian courts is very high. To establish negligence, plaintiffs must prove the defendant owed a duty of care, the standard of care was breached, and this carelessness was the cause of the harm. The standard of care on manufacturers is high, considering the intimate contact between food and the human body when food is consumed.⁸¹ For causation, the traditional but-for test applies, in which the plaintiff must establish but for the negligent act or omission by the defendant, the injury from the food would not have occurred.⁸² In summary, food manufacturers and processors owe a high standard of care to consumers and can be held liable for food that causes injury to consumers.

In the case *Buckley v. Mott*, the Supreme Court of Canada (SCC) found a chocolate bar manufacturer liable in negligence for the negligent manufacturing of a chocolate bar with powdered glass. The *Buckley* case was the first instance of tort liability for negligent manufacturers in Canada. The SCC held that where manufacturers put a dangerously faulty article in their products for sale, they are liable in negligence when the harm is the proximate

⁷⁹ Halsbury's Laws of Canada (online), *Food*, "Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs" (IV.2) at HFD-67 "Tort Liability for Personal Injury Caused by Negligence" (2022 Reissue).

⁸⁰ *Ibid.*

⁸¹ Halsbury's Laws of Canada (online), *Food*, "Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs" (IV.2) at HFD-68 "Proving the Elements of Negligence" (2022 Reissue).

⁸² *Ibid.*

cause of injury to the consumer.⁸³ Food manufacturers and restaurants have been held liable to consumers in various food product liability cases, including instances where consumers were injured by deleterious and extraneous substances in food and diseased and infested food.⁸⁴ In *McDonalds Restaurants of Canada v. Richards*, the Court of Appeal for Saskatchewan found the restaurant liable in negligence after the respondent suffered food poisoning after eating a hamburger. The respondent convinced the court that but for ingesting the hamburger, their illness would not have occurred.⁸⁵ Another example is the *Varga v. John Labatt Ltd.* case in which the manufacturer was held liable when the plaintiff became ill after drinking a chlorine solution that was supposed to be beer.

The cases of food manufacturers and restaurants being held liable under torts for personal injury and negligence can be differentiated from instances of claims for selling, redistributing, or donating food at its best before date. Food manufacturers and retailers are unlikely to be held liable under food product liability law for claims about food past its best before date; best before dates do not provide consumers with information about the food's safety, and many foods are still safe to eat beyond the best before date. To date, there have not been any claims brought in Canadian courts by consumers regarding a food's quality or freshness in relation to its best before date. The claims brought in Canadian courts about best before dates are mainly labour arbitration and grievances cases. For instance, a grocery store employee was terminated for allegedly breaching the store's food safety policy by changing best before dates on fruit and vegetables and repackaging out of date products,⁸⁶ which was against the store's safety procedure

⁸³ *Buckley v Mott*, 1919 CanLII 900 (NSSC) at 409.

⁸⁴ Halsbury's Laws of Canada, *supra* note 81.

⁸⁵ *McDonalds Restaurants of Canada v Richards*, 2008 SKCA 114 at para 16.

⁸⁶ *Lincoln v Sobeys Capital Incorporated*, 2019 CanLII 69718 at para 3.

not to sell products past their best before date.⁸⁷ Additionally, only a few claims have been brought to Canadian courts for a food retailer's failure to label food products with a best before date. For example, a supermarket was charged with failing to label a food product with a best before date under the *Food and Drug Regulations*,⁸⁸ and a food importer was charged with selling food in a misleading manner that did not have a best before date on its label following an inspection after a complaint was received by the CFIA.⁸⁹

iii. Contract Law

Consumers who have been injured by consuming food might also be able to seek recourse under contract law, and this may have implications on food past its best before date. Injured consumers may have recourse under contract law through the *Sale of Goods Act*⁹⁰ for breach of implied warranty or for statutory breach under provincial statutes that deal with consumer protection, which both require that goods for sale be of "reasonable fitness and merchantable quality."⁹¹ For reasonable fitness, the plaintiff must prove the seller was aware of their purpose for purchasing the goods, they relied on the seller's skill or judgement in making the purchase, and the goods were regularly sold in the course of the seller's business.⁹² Establishing merchantable quality typically requires that a reasonable person would accept the goods under the circumstances, and items are not merchantable if they have defects making them unfit for their proper use and the defects are not evident upon a simple examination.⁹³ Overall, selling a food product that causes a person injury can breach both reasonable fitness and

⁸⁷ Lincoln, *supra* note 86 at para 19.

⁸⁸ *Dominion Stores Ltd v R*, 1985 NJ 255 at para 1.

⁸⁹ *R v Piko Foods Ltd*, 2011 BCPC 204 at para 2.

⁹⁰ *Sale of Goods Act*, RSO 1990 c S.1 s 15.

⁹¹ Halsbury's Laws of Canada (online), *Food*, "Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs" (IV.3(1)) at HFD-70 "Defective, Dangerous or Injurious Food Sources" (2022 Reissue).

⁹² *Ibid.*

⁹³ *Ibid.*

merchantable quality warranties under contract law.⁹⁴ The *Wild Rose Mills Ltd. v. Ellison Milling Co.* case establishes that the relationship between the standards set out in the *Food and Drugs Act* and contract law is food products that pass government inspection should be of merchantable quality.⁹⁵ The recourse available to consumers under contract law may have indirect implications on how food manufacturers and retailers manage best before dates. Since manufacturers set the best before dates, they may be cautious and set conservative dates. Further, food retailers may decide to discard products past their best before dates to minimize claims under contract law, despite existing food donation protection laws, to be discussed next.

iv. Food Donation Liability

Canada has food donor protection laws that are relevant to how the food industry can manage food past its best before date. The law protects individuals and companies who donate food by providing a defence against any claims against the donor relating to illness caused by the donated food.⁹⁶ The provincial and territorial laws for liability in food-related injuries are similar across all Canadian jurisdictions, other than Quebec⁹⁷, and provides food donors significant protection. For instance, to find a food donor liable for damages resulting from injury or harm caused by food consumption, Ontario's *Donation of Food Act* would require a court to conclude the food was unsafe and the food donor intended to cause injury or acted recklessly; the standard is the reckless disregard requirement, a higher standard than an ordinary negligence claim.⁹⁸ Canada's food donor laws are applicable to food manufacturers, retailers and consumers if they

⁹⁴ Halsbury's Laws of Canada (online), *Food*, "Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs" (IV.3(2)) at HFD-71 "Compensation for Personal Injury and Economic Loss" (2022 Reissue).

⁹⁵ *Ibid.*

⁹⁶ National Zero Waste Council, *supra* note 15 at 4.

⁹⁷ Quebec does not have a specific food donor protection law. Quebec's *Civil Code* Article 1471 protects food donors by exempting people from liability for injuring that may result when they assist others unselfishly or donate property to benefit others.

⁹⁸ *Donation of Food Act*, SO 1994, c 19, s 1-2.

choose to donate food past its best before date. Since best before dates do not provide a guarantee for a food product's safety, a donor would not be liable for any problems or injury that can arise when a person consumes donated food past its best before date.⁹⁹ The key consideration if a person were to face injury or harm after consuming food past its best before date would be whether the donor intended the injury or harm or did not act in good faith before or at the time of donation.¹⁰⁰ Overall, individuals and businesses who act in good faith and exercise due diligence with the food's quality and safety are unlikely to experience liability for donating food past its best before date.¹⁰¹ Considering the strong protections granted to food donors under Canada's food donation protection laws, both food retailers and consumers may increasingly choose to donate such food to reduce food waste.

v. National Food Policy

In 2019, Canada introduced its first national food policy, the *Food Policy for Canada*, to act as a roadmap towards a healthy and sustainable food system.¹⁰² The national food policy has several components, including priority outcomes and action areas, that are relevant to food waste caused by best before dates and provides an opportunity to address this. The "Sustainable Food Practices" priority outcome involves improvements to Canada's environment through practices along the food value chain that reduce the food system's environmental impact.¹⁰³ This priority outcome is connected to food waste caused by best before dates because food waste has a significant environmental impact that could be reduced through sustainable practices to manage such food. Additionally, the fourth action area, *Reduce Food Waste*, aims to reduce food waste in

⁹⁹ National Zero Waste Council, *supra* note 15 at 8.

¹⁰⁰ *Donation of Food Act*, SO 1994, c 19, s 2.

¹⁰¹ National Zero Waste Council, *supra* note 15 at 3.

¹⁰² Agriculture and Agri-Food Canada, *Food Policy for Canada – Everyone at the Table* (Ottawa: Agriculture and Agri-Food Canada, 2019) at 7.

¹⁰³ *Ibid.*

the 2019-2024 period through transforming operations in the processing, retail, and food service sectors.¹⁰⁴ Analyzing and revising regulations and policies governing best before dates is a crucial step to address the avoidable food waste that best before dates cause. Finally, the targets section of the *Food Policy for Canada* sets targets for each long-term outcome, which will be aligned with the UN Sustainable Development Goals (SDG), including target 12.3 to halve per capita global food waste at the retail and consumer levels by 2030.¹⁰⁵ Overall, Canada's national food policy could provide the opportunity to address food waste caused by best before dates once more specific outcomes, priorities, and targets have been set and established.

vi. Effectiveness

Canada has been regulating food date labelling practices, but questions remain about the effectiveness of these legal measure to address food waste. Examining the strengths and limitations of the current legal and policy framework can provide an understanding of their impact to inform interventions to solve Canada's food waste problem. The *Food and Drugs Regulations* that establish the guidelines and definitions of expiry dates and best before dates are ineffective because consumers widely misunderstand and misinterpret them. The regulations fail to establish an adequate standard, because even though best before dates are only required for foods with a durable life of less than 90 days, many manufacturers still use best before dates on foods with a longer durable life and set their own standards to determine these dates. While food product liability and contract law place a high standard of care on food manufacturers and retailers, most cases brought to the court are situations where consumers find dangerous objects in their food or eat food that causes injury or food-borne illness. Yet, best before dates are not safety guarantees that would hold food manufacturers and retailers liable to consumers for these

¹⁰⁴ Agriculture and Agri-Food Canada, *supra* note 102 at 9.

¹⁰⁵ *Ibid* at 13.

harms. The food donation protection laws, if more widely known and understood, could help to encourage food retailers and consumers to donate excess edible food that would otherwise go to waste. Finally, the *Food Policy for Canada* provides opportunities to address how best before dates cause food waste once more specific targets are established because they will be aligned with UN SDG 12.3.

Recommendations for Best Before Dates and Food Waste

i. Removing Best Before Dates

Canada's food system is overly reliant on best before dates to provide information about food, and these labels significantly contribute to avoidable food waste. Therefore, Canada should consider removing best before dates. Other countries have already removed best before dates with positive outcomes. In 2022, several supermarkets in the United Kingdom removed best before dates from a variety of the food products they sell. The supermarket Waitrose, which operates 331 stores in the UK, removed best before dates from several fruits and vegetables as part of their commitment to help customers reduce food waste at home.¹⁰⁶ Waitrose claims removing best before dates will reduce food waste by inviting customers to use their own judgement to decide whether a product is good to eat.¹⁰⁷ Waitrose has not measured how much food waste this action has reduced, but reported that food waste has been reduced around 22% in 2022-23, and believes this will help consumers reduce household food waste by allowing them to make their own decisions about freshness.¹⁰⁸ Additionally, food retailer Marks and Spencer

¹⁰⁶ John Lewis Partnership, "Spoiler Alert! Best before dates removed on nearly 500 Waitrose products" (1 August 2022), online: <<https://www.johnlewispartnership.media/news/waitrose/01082022/spoiler-alert-waitrose-to-remove-best-before-dates-on-nearly-500-products-from-september>>.

¹⁰⁷ *Ibid.*

¹⁰⁸ John Lewis Partnership, *Ethics & Sustainability Report 2022/23*, (London: John Lewis Partnership, 2023) at 7 and 31.

removed best before dates from over 300 fruits and vegetables as a part of its commitment to halve food waste by 2030.¹⁰⁹ Marks and Spencer replaced best before dates with a new code that consumers can't understand but store employees can to ensure food's freshness and quality.¹¹⁰ The direct results of removing best before dates at Marks and Spencer still need to be measured, but the retailer reported a 46% reduction in food waste in their stores in 2022-23 (using a 2017-18 baseline), and eliminating best before dates contributed to this reduction.¹¹¹ Finally, Sainsbury supermarket removed best before dates in over 200 product lines in collaboration with WRAP and the UK Food Waste Reduction Roadmap to help halve food waste in its own operations by 2030.¹¹² Sainsbury removed use-by dates on fruits, vegetables, and its own-brand yogurt, a commonly wasted food product that is often safe to eat past its use-by date.¹¹³ The results of this have not been measured yet but, Sainsbury's predicts this initiative can help UK households reduce around 17 million products or 11,000 tonnes of food waste annually.¹¹⁴

While supermarkets in the UK took the initiative to remove best before dates themselves, whether Canadian supermarkets would also take on this initiative themselves is uncertain. However, the *Food and Drug Regulations* can be reviewed and amended to support food retailers in removing best before dates. Fruits and vegetables are already exempt from best before date requirements in the *Food and Drug Regulations* section 1.1(b) and (c), so regulators could revisit

¹⁰⁹ Marks & Spencer, "M&S Removes Best Before Dates Across Fruit and Veg in Bid to Tackle Food Waste" (17 July 2022), online: <<https://corporate.marksandspencer.com/media/press-releases/ms-removes-best-dates-across-fruit-and-veg-bid-tackle-food-waste>>.

¹¹⁰ Marks & Spencer, *supra* note 112.

¹¹¹ Marks and Spencer Group, *Reshaping M&S Sustainability Report 2023*, (London: Marks and Spencer Group, 2023) at 27.

¹¹² Sainsbury's, "Waste not, want not: Sainsbury's latest labelling changes could save up to 17 million food products going to waste each year" (30 August 2022), online: <<https://www.about.sainsburys.co.uk/news/latest-news/2022/30-08-2022-sainsburys-latest-labelling-changes-to-save-food-waste>>.

¹¹³ *Ibid.*

¹¹⁴ Sainsbury's, *Sainsbury's Plan for Better 2022/23 Sustainability Update*, (London: Sainsbury's, 2023) at 12.

the best before date requirements on other perishable foods like yogurt and dairy that are frequently wasted yet still edible past their best before date.

Challenges to Removing Best Before Dates

Removing best before dates seems to be a promising solution to reduce food waste, but this avenue may be challenging for regulators, food manufacturers, and retailers to implement. Several factors must be addressed to ensure the challenges of removing best before dates can be overcome. First, whether Canadian consumers support removing best before dates is an important consideration. A 2022 report by the Agri-Food Analytics Lab, which was a representative survey of 1508 Canadians, found 62% of respondents oppose eliminating best before dates on food products. This study also demonstrates Canadians' willingness to consume food after the best before date is dependent on the type of food. 68% of Canadians are willing to buy produce without a best before date, but only 15% are willing to purchase dairy products without a best before date.¹¹⁵ Further, only 27% of Canadians support eliminating best before dates in general, suggesting removing best before dates may be an unpopular measure.¹¹⁶ To overcome Canadian consumers' opposition to removing best before dates, regulators and the food industry can collaborate to provide consumers with information about a food's actual durable life and the checks consumers can do to use their own judgement to decide whether food is good to eat. For instance, WRAP, Food Standards Agency, and the Department for Environment, Food & Rural Affairs in the UK collaborated to publish a Labelling Guidance which details best practices on food date labelling and storage advice. This publication should be read along with the *EU Food Information for Consumers Regulation* No 1169/2011 to acts as a

¹¹⁵ Sylvain Charlebois & Janet Music, *Majority of Canadians Oppose Eliminating "Best Before" Dates on Food Products to Reduce Food waste, According to a New Report*, (Halifax: Agri-Food Analytics Lab, 2022) at 3.

¹¹⁶ *Ibid* at 3.

guide to ensure food is properly described, stored, used, and safely provided to consumers to result in reducing household food waste.¹¹⁷ Food labels can include storage, refrigeration, and freezing information to help consumers make safe food decisions while reducing food waste.¹¹⁸ For instance, the Labelling Guidance provides that bread labelling information should state “do not refrigerate” because it stales six times quicker in the fridge,¹¹⁹ which is an example of how proper food storage information on food labels serves consumers better in comparison to best before dates.

Another challenge in removing best before dates is the transition costs food manufacturers would incur to change packaging design, systems, and inventory management. For instance, Health Canada estimates changes to food labels for the new front of package labelling requirements will cost the food industry between \$500-\$800 million to be compliant with regulations that require a symbol of the front of packaged foods indicating they are high in saturated fats, sugar, and/or sodium.¹²⁰ To overcome this challenge, planning and coordination between food manufacturers, retailers and regulators is required, such as ensuring producers are given enough time to make the necessary changes to their practices. For example, the front of package regulations included multiple transition periods, considering that the regulation is complex and will have a stronger impact on small and medium businesses, compared to large, resourceful businesses.¹²¹

¹¹⁷ WRAP, Food Standards Agency & Department for Environment Food & Rural Affairs, *Labelling Guidance*, (UK: Wrap, 2017) at 4.

¹¹⁸ *Ibid* at 14.

¹¹⁹ *Ibid* at 30.

¹²⁰ Kelly Crowe, “Sugar’s on the food label, but you’ll have to guess how much has been ‘added’” (16 December 2016), online: <<https://www.cbc.ca/news/health/sugar-canada-food-label-1.3899324>>.

¹²¹ Government of Canada, “Food Labelling Coordination: Joint Policy Statement” (5 August 2021), online: <<https://www.canada.ca/en/health-canada/services/food-nutrition/legislation-guidelines/policies/food-labelling-coordination/joint-policy-statement.html>>.

ii. Alternative Food Dating Systems

Alternative methods to food date labelling could be implemented to reduce food waste. Instead of removing best before dates entirely, other date labelling methods are available to ensure transparency and quality between the food industry and consumers. Dr. Keith Warriner, a food safety expert from the University of Guelph, stated removing best before dates does have some advantages, but other methods of food dating will need to be adopted.¹²² There are many alternative strategies to best before dates that Canadian regulators can explore. Dairy is one of the most wasted foods, so revising dairy date label is one measure that can reduce food waste. Dairy products are wasted by consumers because they are not used prior to their best before date.¹²³ To reduce dairy household waste, date labels can be revised to include information about the date label's meaning. Reducing milk waste in households would require consumers to understand what the best before date label means and feel confident in using their judgement to consume a food past its best before date.¹²⁴ Additional information can be added to food labels to give consumers the knowledge to decide whether a food is good to eat; for instance, a bonus days label can be added to a milk label to indicate that consumers can consume the product beyond its best before date if stored at the correct refrigerated temperature.¹²⁵ In a study of Danish consumers, 84% of respondents were knowledgeable of the meaning of best before dates.¹²⁶ Yet, only consumers who did not see a risk with consuming dairy past its best before date were willing to purchase and consume dairy products nearing its best before date.¹²⁷ Further, Danish

¹²² Radhika Sikaria, "Canadian Researcher Says Scrapping 'Best Before' Dates Will Not Reduce UK Food Waste" (15 August 2022), online: <<https://www.foodingredientsfirst.com/news/canadian-researcher-says-scrapping-best-before-dates-will-not-reduce-uk-food-waste>>

¹²³ Phil Downing et al, *Citizen Insights on Use By and Best Before Dates on Dairy Products*, (UK: WRAP, 2023) at 9.

¹²⁴ WRAP, *Label Better Less Waste: Milk Guidance*, (UK: WRAP, 2018) at 1.

¹²⁵ *Ibid* at 3.

¹²⁶ Melgaard, *supra* note 51 at 2.

¹²⁷ *Ibid* at 11.

consumers with lower risk perception also purchase dairy products close to the best before date because they are knowledgeable of environmental concerns and food waste.¹²⁸ This study of Danish consumers establishes how additional information on food labels can support consumers in making decisions to eat food past its best before date. Overall, people would consume dairy products for a longer time after its best before date if they understood the best before date's meaning and trusted their own judgement to make decisions on whether to eat or discard foods.¹²⁹ Considering the benefits of the dairy date labelling guidance, Canada's *Food and Drug Regulations* can be reviewed and implement revisions that would require the food industry to provide consumers with information that promotes better understanding of best before dates and guidance on extending the food's durable life like proper storage, or use labels that only store employees understand to allow consumers to make their own consumption decisions.

Challenges to Alternative Food Dating Systems

The food industry may be resistant to implementing an alternative dating system due to concerns about the financial implications, regulatory compliance, and supply chain management issues. The financial cost of measures the food industry can take to reduce food waste caused by best before dates may be a challenge to implement alternative dating systems. For food manufacturers and processors, the businesses' short term management perspectives and emphasis on profits and efficiency may result in a food industry that is reluctant to invest in food waste reduction projects, such as an alternative dating system, that require capital upfront or other resources without generating any additional profits.¹³⁰ Furthermore, food businesses are reluctant to reduce food waste in general, either at the source or through recovery, because there is a lack

¹²⁸ Melgaard, *supra* note 51 at 11.

¹²⁹ Downing, *supra* note 123 at 8.

¹³⁰ Nicoleta Uzea, Martin Gooch & David Sparling, *Developing an Industry Led Approach to Addressing Food Waste in Canada*, (Ontario: Provision Coalition, 2014) at 22.

of infrastructure and financial benefits to the company to take on these measures.¹³¹ However, there is a business case for the food industry to reduce food waste, despite the upfront costs. A publication that analyzed around 700 companies found for every \$1 invested in food loss and waste reduction, companies realized a \$13 or greater return.¹³² Further, this publication estimated that the approximate 1/3 of food produced in the world for human consumption that is lost or wasted is equivalent to economic losses of \$940 billion annually.¹³³ IKEA's restaurants are an example of a food business that spent money to implement a food waste-reduction program which resulted in reduced costs and food waste in the long term. IKEA implemented technology such as smart scales and AI technology to collect data on what food is being wasted and why, and partnered with Too Good to Go's mobile app to sell surplus food at a discounted price.¹³⁴ Within 12 weeks of implementing this food waste reduction program, IKEA reduced food waste by 20% and most sites had a 20-week payback period.¹³⁵ By 2022, these technologies resulted in reducing food waste by 54% across all its restaurants in 2022, which saves IKEA \$37 million annually.¹³⁶ To overcome the food industry's opposition to reducing food waste due to the added business costs, regulators can promote the business case of reducing food waste to develop a date labelling system that works for producers and consumers.

¹³¹ Uzea, *supra* note 130 at 22.

¹³² Austin Clowes, Craig Hanson & Richard Swannell, *The Business Case for Reducing Food Loss and Waste: Restaurants*, (Washington: Champions 12.3, 2017) at 2.

¹³³ *Ibid* at 1.

¹³⁴ World Resources Institute, "IKEA Becomes First Global Company to Halve Food Waste" (5 June 2023), online: <https://www.wri.org/outcomes/ikea-becomes-first-global-company-halve-food-waste>.

¹³⁵ Clowes, *supra* note 132 at 10.

¹³⁶ World Resources Institute, *supra* note 134.

iii. Discourage Food Waste in Landfills

Governments across the world have implemented legislation and programs to discourage food waste from ending up in landfills. Discouraging or banning food waste in landfills could be an effective measure to reduce household and retail food waste caused by best before dates. France's food waste prevention legislation is one example of a legal measure that discourages food waste in landfills. In 2016, France adopted the first law to fight food waste by forbidding supermarkets from destroying unsold food products and encourages them to donate it instead.¹³⁷ The law focused on the retail sector by forbidding wasting unsold food products still fit for consumption and requiring retailers to establish partnerships with charities to donate unsold food.¹³⁸ France's legislation can be a model to address the food waste caused by best before dates in Canada because it incentivizes food retailers to divert and donate surplus edible food that is nearing or past best before date. This approach could also reduce food retailers' behaviours to discard food products based solely on their best before dates.

Another example of government action that discourages food waste in landfills is Metro Vancouver's ban on food scraps in landfills. Since January 2015, Metro Vancouver banned disposing organic materials like food scraps in the region's waste facilities and charges a 50% surcharge on the cost of disposal if a waste load contains excessive amounts of food scraps.¹³⁹ The surcharge is enforced through inspecting waste when its delivered to disposal facilities.¹⁴⁰ Metro Vancouver encourages food scrap recycling through their green bin compost program which is available to all households, including condos and apartments.¹⁴¹ As a result, around 1.6

¹³⁷ Zero Waste Europe, "France's Law for Fighting Food Waste" (17 November 2020), online: <<https://zerowasteurope.eu/library/france-law-for-fighting-food-waste/>>.

¹³⁸ LOI no 2016-138 du 11 février 2016 relative à la lutte contre le gaspillage alimentaire (1), JO, 12 February 2016.

¹³⁹ Metro Vancouver, "About Food Scraps Recycling" (last visited 2 April 2024), online: <<https://metrovancover.org/services/solid-waste/about-food-scraps-recycling>>.

¹⁴⁰ *Ibid.*

¹⁴¹ *Ibid.*

million tonnes of organic waste has been diverted from landfill from 2015-2018, which reduced greenhouse gas emissions by over half a million tonnes, and the region's organic recycling rate increased to 68%.¹⁴² By banning organic waste in landfills, Metro Vancouver encourages food retailers and households to reduce their food waste and consider alternative methods to manage food at its best before date, such as retailers diverting this food to charities, or consumers choosing to freeze or immediately consume food. Federal and local governments can use legislation and waste disposal bans to discourage food waste in landfills, which encourages households and food retailers to consider alternative methods to manage surplus food.

Challenges to Discouraging Food Waste in Landfills

Government action to encourage food retailers and households to reduce food waste is a positive step, yet there are criticisms of legislation that requires donating surplus edible food. While France has achieved a 10% reduction in food waste between 2016 and 2020 after implementing legislation requiring grocery stores donate unsold food, this legislation does not completely address the root causes of food waste in France.¹⁴³ France faces challenges to arrange the food donations between food retailers and charities, including transportation issues and proper storage, which have led to inefficiencies in this legislative measure.¹⁴⁴ The challenges France faces may occur in Canada if similar legislation were implemented. Food retailers may find it difficult to donate surplus edible food because infrastructure gaps remain a problem in Canada, particularly in rural and semi-urban areas; this gap remains the food industry's largest barrier to increase food rescue and redistribution programs.¹⁴⁵ These challenges emphasize the

¹⁴² Metro Vancouver, Media Release, "'Hey! Food Scraps Aren't Garbage' Builds on Green Bin Successes" (9 September 2019), online: <<https://metrovanancouver.org/media-room/media-release/586>>.

¹⁴³ Emma Norton, "How France is Fighting Food Waste" (9 January 2024), online: <<https://blog.secondharvest.ca/2024/01/09/how-france-is-fighting-food-waste/>>.

¹⁴⁴ *Ibid.*

¹⁴⁵ Nikkel, *The Avoidable Crisis*, *supra* note 2 at 42.

need for legislation and bans on organic waste to be continuously evaluated to ensure the food industry can be supported to effectively divert surplus edible food to charities.

iv. Public Education Campaigns

A public education campaign targeted to consumers is a policy option that can have a significant positive impact on reducing food waste caused by best before dates. The Love Food Hate Waste campaign is Canada's leading resource to change behaviour to prevent household food waste. This campaign offers simple, actionable tips and strategies to help households make their food go further and reduce waste through several campaigns; some include planning grocery shopping trips and meals, making groceries go further, and the different ways to use food.¹⁴⁶ Love Food Hate Waste does not have a specific campaign on best before dates but, the campaign website has a dedicated page on best before dates that discusses their meaning and how they differ from expiry dates.¹⁴⁷ The National Zero Waste Council conducted a survey in 2020 for this campaign, and found 94% of Canadians are motivated to reduce household avoidable food waste, and 24% of respondents self-reported they reduced their food waste, which indicates an opportunity to build on positive behaviours to prevent food.¹⁴⁸ The Love Food Hate Waste campaign is proven to change behaviour through a global network of stakeholders and partnerships¹⁴⁹, and reaches millions of Canadians with educational information about reducing household food waste.

¹⁴⁶ Love Food Hate Waste & National Zero Waste Council, *Making Every Bite Count: Our First Three Years – 2018 to 2021*, (Vancouver: Love Food Hate Waste, 2022) at 5.

¹⁴⁷ Love Food Hate Waste, "Best Before Dates" (last visited 1 April 2024), online: <<https://lovefoodhatewaste.ca/use-it-up/best-before-dates/>>.

¹⁴⁸ Love Food Hate Waste, *supra* note 149 at 13.

¹⁴⁹ The Love Food Hate Waste Campaign is led by the National Zero Waste Council in collaboration and partnership with RECYC-QUEBEC, the City of Toronto, Walmart Canada, the City of Vancouver, Metro Vancouver, Capital Regional District, the City of Winnipeg, and Recycling Council of Alberta.

Providing Canadian households with the knowledge to make informed decisions about whether a food is good to eat could reduce food waste caused by best before dates. A recent Canadian household food waste intervention study held a four-week program that provided families with children a toolkit, online cooking class, and text messages to reinforce food literacy and reduce food waste.¹⁵⁰ After completing the program, the households reduced avoidable fruit and vegetable waste and other unavoidable food waste significantly, and mothers' behavioural control of reducing food waste increased.¹⁵¹ Additionally, more children answered questions on the meaning of best before dates correctly and continued to help with meal preparation once the study was complete.¹⁵² This study implies that families with school-aged children are interested in participating in hands-on activities to reduce household food waste.¹⁵³ Overall, the results of this program establish that household intervention can be an effective method to improve food literacy and reduce household food waste. The program design and results of this study can be applied to reduce food waste caused by best before dates. For instance, a household intervention program that informs people about the meanings of best before dates and how to perform checks of food to determine whether it's good to eat could have the potential to reduce household food waste caused by best before dates. A public education campaign that educates households on reducing food waste caused by best before dates could be one component that works towards achieving the *Food Policy for Canada* priority outcome of sustainable food practices. Since there is no dedicated education campaign on food waste caused by best before dates, Second Harvest's training and education programs on food waste prevention with content on understanding best

¹⁵⁰ Amar Laila et al, "Household Food Waste Intervention is Feasible, Acceptable and Effective" (2024) 56:2 J of Nutrition Education & Behaviour 110 at 111.

¹⁵¹ *Ibid* at 113.

¹⁵² *Ibid*.

¹⁵³ *Ibid* at 115.

before dates can be expanded and scaled up to reach more households and even schools as part of a new school food program.¹⁵⁴

Challenges to Public Education Campaigns

Implementing a public education campaign to reduce household food waste caused by best before dates will have various challenges. Information about the problem of food waste and how best before dates contribute to food waste is widely available, so public education campaign must focus on presenting information to a wider audience for behaviour change. Lack of funding and incentives to learn about food waste and best before dates is a main challenge. For example, Second Harvest education program, created with presenting sponsor Scotiabank,¹⁵⁵ on food waste prevention and best before dates could be expanded on with increased government funding. Finally, public education campaigns are only effective if they can reach diverse populations. Education campaigns may face challenges in reducing food waste caused by best before dates because they are not tailored to Canada's diverse population. For instance, the Canadian household food waste intervention study was limited in its effects because the participants were mainly white, high-income households, and the intervention did not engage fathers to the same degree as mothers.¹⁵⁶ Therefore, public education campaigns need to be developed and available to historically marginalized populations and families to reach all of Canada's demographics.

¹⁵⁴ Second Harvest, "A Guide to Food Date Labelling" (last visited 1 April 2024), online: <<https://www.secondharvest.ca/resources/training/food-waste-prevention/guide-labeling>>.

¹⁵⁵ *Ibid.*

¹⁵⁶ Laila, *supra* note 150 at 115.

Conclusion

In conclusion, best before dates contribute to Canada's food waste problem. Both consumers and food producers waste food past its best before date, even when its edible. For consumers, knowledge of best before dates' purpose, perishability and shopping habits affects whether they eat or discard food at its best before date. Retailer stock rotation policies and overstocking to meet consumers expectations results in ineffective food management and wasted food. Public health information encourage caution, resulting in avoidable food waste due to safety concerns. Various legal and policy recommendations exist to reduce food waste caused by best before dates. Food manufacturers, retailers, and restaurants are unlikely to face legal challenges in selling or redistributing food past its best before date, as courts are unlikely to find them liable under food product liability or contract law for claims about food past its best before date. Food donation protection laws can encourage food donation over waste. The new *Food Policy for Canada* provides opportunities for policy to address food waste caused by best before dates. Collective efforts between government, the food industry, and consumers to reduce food waste caused by best before dates can include measures like removing best before dates entirely or implementing alternative food dating systems to encourage consumers to make their own decisions about a food's safety, reducing food waste in landfills through increased landfill disposal charges, and targeted public education campaigns that increase knowledge of best before dates and how to make food safety decisions. While these recommendations can be challenging to implement, revisions to the regulations and new food policy must support a collective effort to reduce food waste to achieve an efficient and sustainable food system.

BIBLIOGRAPHY

LEGISLATION: CANADA

Donation of Food Act, SO 1994, c 19.
Food and Drug Regulations, CRC c 870.
Food and Drugs Act, RSC 1985 c F-27.
Sale of Goods Act, RSO 1990 c S.1.

LEGISLATION: INTERNATIONAL

LOI no 2016-138 du 11 février 2016 relative à la lutte contre le gaspillage alimentaire (1).

JURISPRUDENCE

Buckley v Mott, 1919 CanLII 900 (NSSC), at 409.
Dominion Stores Ltd v R, 1985 NJ 255.
Lincoln v Sobeys Capital Incorporated, 2019 CanLII 69718
McDonalds Restaurants of Canada v Richards, 2008 SKCA 114
R v Piko Foods Ltd, 2011 BCPC 204.

SECONDARY MATERIALS: ARTICLES

Audet, René & Éliane Brisebois, “The Social Production of Food Waste at the Retail-Consumption Interface” (2019) 11:14 Sustainability 1.
Hensel, Harvey L “Look What Consumerism Has Done Now” (1974) 29:5 Food Drug Cosmetic L 220.
Kavanaugh, Melissa & Jennifer J Quinlan, “Consumer Knowledge and Behaviours Regarding Food Date Labels and Food Waste” (2020) 115:107285 Food Control 1.
Laila, Amar et al, “Household Food Waste Intervention is Feasible, Acceptable and Effective” (2024) 56:2 J of Nutrition Education & Behaviour 110.
Li, Belinda, Virginia Maclaren & Tammara Soma, “Urban Household Food Waste: Drivers and Practices in Toronto, Canada” (2021) 123:5 British Food J 1793.
MacRae, Rod et al, “Making Better Use of What We Have: Strategies to Minimize Food Waste and Resource Inefficiency in Canada” (2016) 3:2 Can Food Studies 145.
Melgaard, Carina V et al, “Danish consumers’ knowledge about and willingness to buy dairy products close to the best-before date” (2024) Food Frontiers 1.
Neff, Roni A et al, “Misunderstood Food Date Labels and Reported Food Discards: A Survey of U.S. Consumer Attitudes and Behaviours” (2019) 86 Waste Management 123.
Newsome, Rosetta et al, “Applications and Perceptions of Date Labelling of Food” (2014) 13:4 Comprehensive Rev in Food Science & Food Safety 745.
Parizeau, Kate, Mike Von Massow & Ralph Martin, “Household-level Dynamics of Food Waste Production and Related Beliefs, Attitudes, and Behaviours in Guelph, Ontario” (2015) 35 Waste Management 207.
Patra, Debasmita, Shuyi Feng & Jeff W Howard, “Confusion of food-date label with Food Safety – Implications for Food Waste” (2022) 48:100917 Current Opinion in Food Science 1.
Van Boxstael, S et al, “Understanding and Attitude Regarding the Shelf Life Labels and Dates on Pre-Packed Food Products by Belgian Consumers” (2014) 37 Food Control 85.

SECONDARY MATERIALS: ELECTRONIC SOURCES

- Boggs, Squire Patton “Another UK Supermarket to Scrap ‘Best Before’ Date on Almost 300 Lines” (26 September 2022), online: <<https://www.lexology.com/library/detail.aspx?g=dc0be9fb-7d20-4eed-a1ca-748f5b31321b>>.
- Crowe, Kelly “Sugar’s on the food label, but you’ll have to guess how much has been ‘added’” (16 December 2016), online: <<https://www.cbc.ca/news/health/sugar-canada-food-label-1.3899324>>.
- Government of Canada, “Date markings and storage instructions on food labels” (22 June 2023), online: <<https://inspection.canada.ca/food-labels/labelling/industry/date-markings-and-storage-instructions/eng/1627497005658/1627497193134>>
- Government of Canada, “Food Labelling Coordination: Joint Policy Statement” (5 August 2021), online: <<https://www.canada.ca/en/health-canada/services/food-nutrition/legislation-guidelines/policies/food-labelling-coordination/joint-policy-statement.html>>.
- Government of Canada, “Food Safety and You” (29 June 2021), online: <<https://www.canada.ca/en/health-canada/services/general-food-safety-tips/food-safety-you.html>>.
- Government of Canada, “Food Safety Tips for Leftovers” (23 November 2020), online: <<https://www.canada.ca/en/health-canada/services/general-food-safety-tips/food-safety-tips-leftovers.html>>.
- Government of Canada, “Shelf life studies” (13 June 2018), online: <<https://inspection.canada.ca/preventive-controls/shelf-life-studies/eng/1518010592756/1528203595232>>.
- Government of Canada, “Understanding the date labels on your food” (23 August 2023), online: <<https://inspection.canada.ca/food-labels/labelling/consumers/understanding-the-date-labels-on-your-food/eng/1332357469487/1332357545633>>.
- John Lewis Partnership, “Spoiler Alert! Best before dates removed on nearly 500 Waitrose products” (1 August 2022), online: <<https://www.johnlewispartnership.media/news/waitrose/01082022/spoiler-alert-waitrose-to-remove-best-before-dates-on-nearly-500-products-from-september>>
- Love Food Hate Waste, “Best Before Dates” (last visited 1 April 2024), online: <<https://lovefoodhatewaste.ca/use-it-up/best-before-dates/>>.
- Marks & Spencer, “M&S Removes Best Before Dates Across Fruit and Veg in Bid to Tackle Food Waste” (17 July 2022), online: <<https://corporate.marksandspencer.com/media/press-releases/ms-removes-best-dates-across-fruit-and-veg-bid-tackle-food-waste>>.
- Metro Vancouver, “About Food Scraps Recycling” (last visited 2 April 2024), online: <<https://metrovancover.org/services/solid-waste/about-food-scraps-recycling>>.
- Metro Vancouver, Media Release, “‘Hey! Food Scraps Aren’t Garbage’ Builds on Green Bin Successes” (9 September 2019), online: <<https://metrovancover.org/media-room/media-release/586>>.
- Milbrath, Sam “Best Before Dates: Everything You Need to Know” (19 February 2022), online (blog): <<https://blog.secondharvest.ca/2022/02/19/everything-you-need-to-know-about-best-before-dates/>>.
- Nikkel, Lori “Nikkel: ‘Best before’ dates on food are long past their prime in Canada”, *Ottawa*

- Citizen* (15 August 2022), online: <<https://ottawacitizen.com/opinion/nikkel-best-before-dates-are-long-past-their-prime-in-canada>>.
- Norton, Emma “How France is Fighting Food Waste” (9 January 2024), online: <<https://blog.secondharvest.ca/2024/01/09/how-france-is-fighting-food-waste/>>.
- Nwadike, Londa “How do food manufacturers pick those dates on their product packaging – and what do they mean?”, *The Conversation* (26 June 2016), online: <<https://theconversation.com/how-do-food-manufacturers-pick-those-dates-on-their-product-packaging-and-what-do-they-mean-60591>>.
- Second Harvest, “A Guide to Food Date Labelling” (last visited 1 April 2024), online: <<https://www.secondharvest.ca/resources/training/food-waste-prevention/guide-labeling>>.
- Sikaria, Radhika “Canadian Researcher Says Scrapping ‘Best Before’ Dates Will Not Reduce UK Food Waste” (15 August 2022), online: <<https://www.foodingredientsfirst.com/news/canadian-researcher-says-scrapping-best-before-dates-will-not-reduce-uk-food-waste>>.
- “The Dating Game”, *Food in Canada* (1 October 2019), online: <<https://www.foodincanada.com/features/the-dating-game/>>
- World Resources Institute, “IKEA Becomes First Global Company to Halve Food Waste” (5 June 2023), online: <<https://www.wri.org/outcomes/ikea-becomes-first-global-company-halve-food-waste>>.
- York University, “Supply Chain Waste” (last visited 1 April 2024), online: <<https://foodpolicyforcanada.info.yorku.ca/goals/goal-5/food-waste/supply-chain-waste/>>.
- Zero Waste Europe, “France’s Law for Fighting Food Waste” (17 November 2020), online: <<https://zerowasteurope.eu/library/france-law-for-fighting-food-waste/>>.

SECONDARY MATERIALS: ENCYCLOPEDIAS

- Halsbury’s Laws of Canada (online), *Food*, “Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs” (IV.2) at HFD-67 “Tort Liability for Personal Injury Caused by Negligence” (2022 Reissue).
- Halsbury’s Laws of Canada (online), *Food*, “Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs” (IV.2) at HFD-68 “Proving the Elements of Negligence” (2022 Reissue).
- Halsbury’s Laws of Canada (online), *Food*, “Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs” (IV.3(1)) at HFD-70 “Defective, Dangerous or Injurious Food Sources” (2022 Reissue).
- Halsbury’s Laws of Canada (online), *Food*, “Private Law Liability for Food Producers, Processors, Marketers and Restaurateurs” (IV.3(2)) at HFD-71 “Compensation for Personal Injury and Economic Loss” (2022 Reissue).

SECONDARY MATERIALS: REPORTS

- Agriculture and Agri-Food Canada, *Food Policy for Canada – Everyone at the Table* (Ottawa: Agriculture and Agri-Food Canada, 2019).
- Charlebois, Sylvain Erica Finch & Janet Music, *Household organic Food Waste – COVID-19*, (Halifax: Agri-Food Analytics Lab, 2020).
- Charlebois, Sylvain, & Janet Music, *Majority of Canadians Oppose Eliminating “Best Before”*

- Dates on Food Products to Reduce Food waste, According to a New Report*, (Halifax: Agri-Food Analytics Lab, 2022).
- Clowes, Austin, Craig Hanson & Richard Swannell, *The Business Case for Reducing Food Loss and Waste: Restaurants*, (Washington: Champions 12.3, 2017).
- Downing, Phil et al, *Citizen Insights on Use By and Best Before Dates on Dairy Products*, (UK: WRAP, 2023).
- Gooch, Martin et al, *Wasted Opportunity: The Technical Report*, (Ontario: Second Harvest and Value Chain Management, 2022).
- Gustavsson, Jenny et al, *Global Food Losses and Food Waste*, (Rome: Food and Agriculture Organization of the United Nations, 2011).
- John Lewis Partnership, *Ethics & Sustainability Report 2022/23*, (London: John Lewis Partnership, 2023).
- Leib, Emily Broad et al, *The Dating Game: How Confusing Food Date Labels Lead to Food Waste in America*, (New York: Natural Resources Defense Council and Harvard Food Law and Policy Clinic, 2013).
- Loblaw Companies Limited, *Environmental, Social and Governance Report 2022*, (Ontario: Loblaw Companies Limited, 2022).
- Love Food Hate Waste & National Zero Waste Council, *Making Every Bite Count: Our First Three Years – 2018 to 2021*, (Vancouver: Love Food Hate Waste, 2022).
- Marks and Spencer Group, *Reshaping M&S Sustainability Report 2023*, (London: Marks and Spencer Group, 2023).
- National Zero Waste Council, *Food Donation and Civil Liability in Canada*, (Vancouver: National Zero Waste Council, 2018).
- Nikkel, Lori et al, *The Avoidable Crisis of Food Waste: The Roadmap*, (Ontario: Second Harvest and Value Chain Management International, 2019).
- Uzea, Nicoleta Martin Gooch & David Sparling, *Developing an Industry Led Approach to Addressing Food Waste in Canada*, (Ontario: Provision Coalition, 2014).
- WRAP, Food Standards Agency & Department for Environment Food & Rural Affairs, *Labelling Guidance*, (UK: Wrap, 2017).
- WRAP, *Label Better Less Waste: Milk Guidance*, (UK: WRAP, 2018).